

Applicable Law Acts

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User Query :

I ended a relationship several months ago. Since then, my former partner has been repeatedly calling me from different numbers, sending unwanted WhatsApp messages and waiting outside my office. I have clearly asked the person not to contact or follow me, but the behaviour continues. The person also monitors my social-media posts and sometimes appears at locations shortly after I post about them. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 3/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 No current IT Act offence clearly covers the repeated unwanted contact and following as described. The former offensive-messages provision struck down by the Supreme Court in Shreya Singhal must not be used.

✓ STRENGTHS & RIGHTS

- 1 The answer avoids forcing a cybercrime provision simply because WhatsApp/social media are involved.

✗ RISKS & OBLIGATIONS

- 1 Other cybercrime provisions require additional elements such as personation, private-area imagery or obscene material that are not stated here.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve messages/call logs as evidence even though the substantive offence is principally under BNS.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 78 — Stalking

The conduct matches repeated following/contact after disinterest and monitoring electronic communication, but the statutory text is gender-specific: it applies where a man follows/monitors a woman.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 78** is the relevant stalking provision if the statutory gender elements are satisfied. The scenario itself is gender-neutral, so the application should be marked conditional rather than certain.

✓ STRENGTHS & RIGHTS

- 1** Repeated calls/messages, waiting outside the office, explicit requests to stop, and monitoring social-media activity closely match the conduct described in **section 78** .

✗ RISKS & OBLIGATIONS

- 1** Do not state **section 78** as definitively applicable without facts satisfying its gender-specific wording.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

- 1.** BNS is substantive law; evidence from messages, call logs and social-media activity is governed by the BSA.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023**APPLICABLE SECTIONS****Section 61 — Electronic or digital record**

WhatsApp messages, call logs and social-media records may be electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Proof of electronic-record contents is governed through **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving preserved digital communications.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 These sections govern proof of the electronic records that may demonstrate repeated unwanted contact and monitoring.

✓ STRENGTHS & RIGHTS

- 1 Original device/account records can corroborate the pattern of conduct.

✗ RISKS & OBLIGATIONS

- 1 BSA does not itself create the stalking offence.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve originals, timestamps, account identifiers and any CCTV/witness evidence.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The scenario concerns interpersonal stalking/harassment. It does not state facts establishing unlawful processing by a Data Fiduciary or processor.

✓ STRENGTHS & RIGHTS

- 1 Avoids overextending DPDP to ordinary interpersonal monitoring of publicly posted content.

X RISKS & OBLIGATIONS

1

Different facts about a platform's processing or disclosure could change the analysis.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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